

24STCV25216 24STCV25216

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-15

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Case Number: 24STCV25216 Hearing Date: July 15, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV25216

ALEJANDRO

CONANT vs JEWELS CATCH ONE CORPORATION, et al.

July

15, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF ALEJANDRO CONANT'S MOTION FOR LEAVE TO AMEND COMPLAINT TO ASSERT
PUNITIVE DAMAGES ALLEGATIONS PURSUANT TO CODE
OF CIVIL PROCEDURE § 473(a)(1); CIVIL CODE § 3294.

RULING:

The Court grants the Motion,
on the condition of a trial continuance.

Final Status Conference

set for September 24, 2026 and Jury Trial set for October 6, 2026 will be
continued as follows: Final Status Conference September 10, 2027 at 9:00 a.m.,
Jury Trial September 21, 2027 at 9:30 a.m.

Plaintiff to give notice.

I.

BACKGROUND

On September 30, 2024, ALEJANDRO
CONANT (Plaintiff) filed a Complaint against
JEWEL'S CATCH ONE CORPORATION dba CATCH ONE, JOHNNY AVILA, SERGIO LUGO
and DAWARD ALLY (Defendant), listing Causes of Action for:

1.

BATTERY;

2.

NEGLIGENCE; and

3.

NEGLIGENT HIRING, SUPERVISION, OR RETENTION OF EMPLOYEES.

Plaintiff alleges that unfit
security individuals, negligently employed and trained to work at Defendant
CATCH ONE, unjustifiably grabbed, punched, and beat Plaintiff.

On June 9, 2026, Plaintiff
filed the Motion for Leave to Amend, to add the remedy of punitive damages.

Defendant opposes in
limited part, by advocating the condition of a trial continuance for additional
pretrial preparation to address the new allegations.

II.

LEGAL STANDARD

Code of Civil Procedure

section 473, subdivision (a)(1) allows courts “in furtherance of justice” to “allow a party to amend any pleading ... in any ... respect”, which is reviewed for abuse of discretion and requires courts to consider factors including the conduct of moving parties and belated presentations of amendments without a showing of excuse. (*Emerald Bay Cmty. Assn. v. Golden Eagle Ins. Corp.* (2005) 130 Cal.App.4th 1078, 1097.)

A court can deny leave to

amend after inexcusable delay, if there is cognizable prejudice, such as discovery needed. (*Solit v. Tokai Bank*

(1999) 68 Cal.App.4th 1435, 1448; *Atkinson*

v. Elk Corp. (2003) 109 Cal.App.4th 739, 761; *Green v. Rancho Santa Margarita Mortgage Co.* (1994) 28 Cal.App.4th 686, 692; *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487.)

“If discovery and

investigation develop factual grounds justifying a timely amendment to a pleading, leave to amend must be liberally granted.” (*Mabie v. Hyatt* (1998) 61 Cal.App.4th 581, 596 [if claims were pled before obtaining justifying support, via investigating and discovery, complainants could be exposed to liability for malicious prosecution].)

III.

ANALYSIS

Plaintiff seeks to add

punitive damages allegations based on discovery and evidence such as surveillance footage and verified discovery responses, and an inactive status of Defendant JOHNNY AVILA’s security guard registration.

In opposition, Defendants

only advocate a trial continuance as a condition for granting, to avoid prejudice caused by inability to file pretrial motions, such as to strike, or for summary judgment.

In the Reply, Plaintiff

argues against a trial continuance, including because there could be sufficient

time before trial for preparation, a summary judgment motion could be done on shortened time, and the motion would be futile given proof of triable issues of material fact.

“[I]f

an amendment is appropriate the trial Court should continue the trial if necessary, even if the matter is on fast track.” (Honig v. Financial Corp. of America (1992) 6 Cal.App.4th 960, 967.)

“[T]he court’s discretion

to impose conditions on leave to amend the complaint extends only to those conditions which are just, i.e., intended to compensate the defendants for any inconvenience belated amendment may cause.” (Armenta ex rel. City of Burbank v. Mueller Co. (2006) 142 Cal.App.4th 636, 642-643.)

Here, the Opposition does

not evidence unjustified delay in moving to amend, in order to make prejudice applicable in support of Motion denial. However, as a condition for granting, the Court may continue trial to avoid prejudice caused by insufficient time to prepare and file some pretrial motions.

IV.

CONCLUSION

Therefore, Court grants

the Motion, with a condition of a trial continuance.